

Opinion of the Court.

state trials, notably in those of Sir Nicholas Throckmorton, and Udal, the Puritan minister, made the system so odious as to give rise to a demand for its total abolition. The change in the English criminal procedure in that particular seems to be founded upon no statute and no judicial opinion, but upon a general and silent acquiescence of the courts in a popular demand. But, however adopted, it has become firmly embedded in English, as well as in American jurisprudence. So deeply did the iniquities of the ancient system impress themselves upon the minds of the American colonists that the States, with one accord, made a denial of the right to question an accused person a part of their fundamental law, so that a maxim, which in England was a mere rule of evidence, became clothed in this country with the impregnability of a constitutional enactment.

Stringent as the general rule is, however, certain classes of cases have always been treated as not falling within the reason of the rule, and, therefore, constituting apparent exceptions. When examined, these cases will all be found to be based upon the idea that, if the testimony sought cannot possibly be used as a basis for, or in aid of, a criminal prosecution against the witness, the rule ceases to apply, its object being to protect the witness himself and no one else—much less that it shall be made use of as a pretext for securing immunity to others.

1. Thus, if the witness himself elects to waive his privilege, as he may doubtless do, since the privilege is for his protection and not for that of other parties, and discloses his criminal connections, he is not permitted to stop, but must go on and make a full disclosure. 1 Greenl. Ev. § 451; *Dixon v. Vale*, 1 C. & P. 278; *East v. Chapman*, 2 C. & P. 570; *S. C. M. & M.* 46; *State v. K——*, 4 N. H. 562; *Low v. Mitchell*, 18 Maine, 372; *Coburn v. Odell*, 10 Fost. (N. H.) 540; *Norfolk v. Gaylord*, 28 Connecticut, 309; *Austin v. Poiner*, 1 Sim. 348; *Commonwealth v. Pratt*, 126 Mass. 462; *Chamberlain v. Willson*, 12 Vermont, 491; *Lockett v. State*, 63 Alabama, 5; *People v. Freshour*, 55 California, 375.

So, under modern statutes permitting accused persons to